

HINDU MARRIAGE RULES, 1956

PREAMBLE

In exercise of the powers conferred by Sections 14 and 21 of the Hindu Marriage Act, 1955 (Central Act XXV of 1955) the High Court of Karnataka at Bangalore do make the following rules to regulate the proceedings under the said Act and they are hereby published for general information.

'The Act' referred to in these rules shall mean the Hindu Marriage Act, 1955.

Rule - 1. Form of proceedings.

The following proceedings under the Act shall be instituted by original petitions which shall be numbered serially as Miscellaneous Petitions as (H.M.) Mis. No.....of 19....

- (i) under Section 9, for Restitution of Conjugal Rights;
- (ii) under sub-section (1) of Section 10, for Judicial Separation;
- (iii) under sub-section (2) of Section 10, for rescinding a decree for Judicial Separation;
- (iv) under Section 11, for declaring a marriage null and void;
- (v) under Section 12 for annulment of a marriage by a decree of nullity;
- (vi) under Section 13 for divorce;
- (vii) under Section 14 for leave to present a petition for divorce before the expiration of [within such period as prescribed in Section 14 of the Hindu Marriage Act, 1955] from the date of marriage.

Rule - 2. Interlocutory Applications.

Every other proceeding in the same matter subsequent to the petition shall be initiated by an interlocutory application.

Rule - 3. Cause Title.

Every petition, application, affidavit decree or order under the Act shall be headed by a cause title in Form I and shall set forth the provision of the Act or of the rules under which it is made.

Rule - 4. Contents of petition.

- (1) In addition to the particulars specified in Section 20 every petition shall state.

- (i) the names of parties and their occupation and the place and address where the parties reside or last resided together within the jurisdiction of that Court;
 - (ii) the names of children, if any, of the marriage together with their . dates of birth or ages;
 - (iii) if prior to the date of petition there has been any proceeding under the act between the parties to the proceedings, full particulars thereof;
 - (iv) if the petition is for restitution of conjugal rights, the date on or from which and the circumstances under which the respondent withdrew from or terminated conjugal relationship with the petitioner;
 - (v) if the petition is for judicial separation or divorce the matrimonial offence alleged or other grounds upon which the relief is sought, together with full particulars thereof so far as such particulars are known to the petitioner viz.,
 - (a) in a case of alleged desertion, the date and the circumstances under which it began;
 - (b) in a case of alleged cruelty, the circumstances under which it was committed and the reasons for the apprehension in the mind of the petitioner that it will be harmful or injurious for the petitioner to live with the other party;
 - (c) in a case of alleged virulent form of leprosy or venereal disease the date or the period from which it began together with the nature and the period of curative steps taken;
 - (d) in a case of alleged unsoundness of mind, the date and the period from which it began together with the nature and period of curative steps taken and a statement whether such unsoundness of mind has been found and declared in any proceedings in a Court of law.
- (2) Every petition shall set out at the end the relief or the reliefs sought for.

Rule - 5. Copies for service with process.

The petitioner shall along with every petition furnish a copy for service on the respondent together with the fee prescribed for issue of notices under the Court Fees Act in force.

Rule - 6. Leave to present a petition before expiration of three years.

Every petition under Section 14 of the Act for leave to present a petition for divorce before the expiration of ^[1][within such period as prescribed in Section 14 of the Hindu Marriage Act, 1955] from the date of marriage shall be supported by an affidavit setting forth the circumstances relied on as constituting exceptional hardship to the petitioner, or of exceptional depravity on the part of the respondent.

Rule - 7. Notice of petition.

- (1) Notice of the petition shall be in Form II and shall require the respondent to enter appearance in person or by pleader and file a written statement not less than seven days before the day fixed for hearing in the notice.
- (2) The notice together with a copy shall be served on the respondent in the manner prescribed for the service of summons in suits under Order V of the Code of Civil Procedure, 1908.

Rule - 8.

Every decree under Sections 9, 11, 12 and 13 shall be drawn up in Form HI and shall be signed by the District Judge under his hand and seal.

Rule - 9. Custody of Children.

The petitioner or the respondent spouse or the guardian of any children of the marriage may at any time either before or after the decree apply to the Court for an order relating to the custody or education of the children of the marriage and the Court may pass such orders as may be deemed fit and appropriate subject to the provisions of Section 26 of the Act.

Rule - 10. Costs and pleader's fee.

The order as to costs of the proceedings shall be in the discretion of the Court and shall be taxed in the decree. The Court shall have discretion to fix the pleader's fee in the proceedings subject to a minimum of Rs. 10 and a maximum of Rs. 50.

Rule - 11. Security for costs.

- (1) The wife who is a petitioner or who has entered an appearance to a petition may apply to the Court for security for her costs of the proceedings.
- (2) At the hearing of an application for a commission to examine a witness within or outside the jurisdiction of the Court, or at anytime after such an examination is granted, a wife who is a petitioner or who has entered an appearance to a petition may apply for security for her costs of and incidental to such examination.
- (3) When an application for security has been made under this rule, the Court shall ascertain what is a sufficient sum of money to cover the costs of the wife, and if, after taking all the circumstances into account, including the means of the husband and the wife, it considers that the husband should provide security for all or some of the wife's costs, it may order the husband to pay the sum so ascertained, or some portion of it, into Court or to give security therefor within such time as it may fix and may direct a stay of the proceedings until the order is complied with.

Rule - 12.

The rules of the High Court in respect of appeals from orders and decrees shall apply to all appeals preferred under the Act. Such appeals shall be numbered serially as (H.M.) Mis.

appeals.....of 19..

[1] Substituted by Notification No. RPS 136/81, dated 14-12-1981, for the followings:-

"three years"